

LAW AND JUSTICE

A Hole in the 'Open-and-Shut' Case Against Charlie Kirk's Alleged Assassin?

A new court filing suggests Tyler Robinson was in police custody hours before he 'confessed' to Discord buddies and 'surrendered' to a cop friend. Is he a patsy after all?



BY MAUREEN TKACIK

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Tyler Robinson, who is accused of fatally shooting Charlie Kirk, sits beside defense attorney Kathryn Nester during a hearing in Fourth District Court in Provo, Utah, January 16, 2026. Credit: Bethany Baker/The Salt Lake Tribune via AP



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On the evening of September 11, 2025, a user called `zealous_monkey_55095` **told** the members of one of his Discord chats that he had “bad news.”

“it was me at UVU yesterday. Im sorry for all of this. im surrendering through a sheriff friend in a few moments. thanks for all the good times and laughs, you’ve all been so amazing. thank you all for everything.”

Exactly five minutes later, at 8:02 p.m., former Washington County sheriff Nate Brooksby **recalled** a few days later in a press conference, he received a phone call from an old colleague, a former Washington County deputy sheriff. “His voice is kinda shaky so my first thought is, who died?” Brooksby said. “He says, hey I know who Charlie Kirk’s shooter is. I know the family through a religious association, he’s in Washington County now, and we’re working on trying to get him to come in voluntarily.”

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The call lasted all of a minute and 41 seconds, and as soon as he hung up Brooksby called Utah County sheriff Mike Smith, who “was just as shocked as I was,” and with whom he had an even shorter conversation lasting just 40 seconds. “I said, I trust this guy who called me with my life, and I think it’s time to get your people, the lead investigators, headed to Washington County.”

Tyler Robinson surrendered “within the hour,” Brooksby said, arriving “just before 9 p.m.” An **Inmate Booking Sheet** obtained and posted the next day by right-wing YouTuber Steven Crowder states that he was arrested at 10 p.m. on September 11 at an unspecified location outside Utah County by **Brian Davis**, an official with the State Bureau of Investigation, and booked in county jail at 1:58 a.m. on September 12, when FBI director Kash Patel confirmed to a mid-morning press conference that Robinson had been arrested the night before.

But a flurry of court filings in Robinson’s heretofore liberally sealed and redacted murder case launched something like a public unraveling of the official timeline last week. First, a

Republican lobbyist-turned-YouTuber noticed a bombshell on page 70 of a 258-page **motion** filed by Robinson's defense team on March 30 in the form of a transcript recorded "on the evening of his arrest" in which an unnamed law enforcement officer read Robinson his Miranda rights between 6:25 and 6:26 p.m., and the accused assassin replied that he desired to first speak to an attorney named Doug Terry whom his parents had been attempting to retain for him.

The time stamps conflict with the endlessly repeated detail that Robinson was apprehended at 10 p.m. *following a "33-hour manhunt,"* a number Patel in particular seems to love referencing. More importantly, they suggest Robinson had been in police custody for *at least an hour and a half* at the time of the alleged group-chat confession and subsequent reported phone call to Brooksby. Did that explain why the Washington County sheriff's department repeatedly stonewalled a **series of public records requests** filed by the Salt Lake CBS affiliate to obtain surveillance camera footage of Robinson entering and/or being held inside county police headquarters, first under the premise that Robinson had arrived at the building via an entrance other than the one the reporter specified, then because the footage had supposedly been destroyed?



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Robinson's defense attorneys did not note or puzzle over the discrepancy, though in another section of the brief it criticizes the media for circulating an "electronic fake confession," an apparent reference to the Discord fess-up. Robinson's lead attorney Kathryn Nester did not respond to multiple requests for her comment or clarification on the matter.

But last Friday morning, Washington County Deputy Attorney Courtney Sinagra phoned the *Prospect* to say she had an explanation: The "evening of Robinson's arrest" was *actually* September 12, the day after the early documentation had initially reported, because—Sinagra said—the alleged assassin was never actually "arrested" in Washington County but nearly four hours north in Provo, by which point it was well past midnight. This conflicts with essentially everything we were told on September 12, as well as the defense brief's reference to Robinson's "surrender" as having occurred on September 11, and would seem

to be at odds with Robinson's assertion in the excerpted transcript that his parents were looking to retain an attorney "here" named Doug Terry, whose office is 18 miles from the Washington County sheriff's office and 250 miles from the Utah County one, but their efforts had been delayed because "his office is closed for the night," as opposed to the weekend, which would have been the case if the conversation were transpiring on September 12. It is true that subsequent police documents place Robinson's time and date of arrest as 4 a.m. on September 12, most likely because of a **quirk** of Utah Criminal Code governing the treatment of arrests that occur before a judicial warrant has been produced and approved by a judge.

In any case, the Washington County deputy attorney now claims those initial reports were inaccurate and that Robinson was not officially "arrested" until he was transported to Utah County, raising the question of why state authorities traveled more than four hours from their Salt Lake City headquarters to pick him up in the first place, especially if they had no intention of trying to question him until more than 22 hours after Brooksby received his fateful phone call. Muddling matters further, the **search warrant** states that *Robinson* did not even arrive at the Washington County sheriff's office until "approximately 2226 hours," whereas Brooksby had estimated his time of arrival as sometime before 9 p.m.

A former Utah prosecutor told the *Prospect* the timeline discrepancies are "a big problem for the prosecution," especially when coupled with the missing footage and the recent resignation of Brooksby following an anonymous letter to the county commission detailing allegations that he had interfered in the investigation of another deputy who was charged in November on four counts of "unlawfully accessing, using, disclosing or disseminating criminal investigation records"—mercifully unrelated to the Kirk case.

SOMEWHAT IRONICALLY, THE FILING that touched off the renewed media interest in the case was a motion to exclude still and video cameras from Robinson's courtroom proceedings, on the grounds that public officials have exploited sympathetic media to gin up a "content tornado" that has all but demolished the 22-year-old electrical apprentice's constitutional right to a fair trial. Robinson's defense team has taken enormous and frankly disturbing pains to keep the courtroom proceedings as secretive as possible, as the legal analyst Andrea Burkhart noted in a February Substack **post** detailing how it has even filed motions to seal its motions to seal: "[I]t remains astonishing to me how much defense energy is devoted to shutting out the public," she wrote.

But the 258-page motion compellingly elucidates the defense team's rationale by simply synthesizing an abridged version of the blizzard of media coverage most Americans—and certainly most Utahns—probably recall quite clearly, with an eye to the federal thresholds originally established in the 1966 case *Sheppard v. Maxwell*, in which the Supreme Court

ruled that the uncontrolled “media circus” surrounding a 1954 Cleveland murder trial had deprived the accused, a surgeon ultimately exonerated (posthumously by DNA) of killing his wife, of his constitutional due process rights.

Thanks to *Sheppard* and subsequent cases, the Department of Justice and most state law enforcement officials are prohibited by strict **regulations** and American Bar Association guidelines from publicly commenting, *regardless* of the content of public arrest records, on a suspected criminal's character, credibility, religion, or sexual orientation; the “existence or contents” of any confession or confession-like admission given by a defendant; or any references to physical evidence or “investigative procedures” such as “fingerprints, polygraph examinations, ballistic tests, or laboratory tests” and their own personal opinions of a defendant's guilt or innocence.

In Robinson's case, both federal and local officials violated these rules early and often, starting with the September 12 press conference featuring Kash Patel, Utah County Attorney Jeff Gray, Utah County Sheriff Mike Smith, and Utah Gov. Spencer Cox—who is himself an attorney—during which the governor spent 24 minutes discussing Robinson's Discord messages, a family member who was alleged to have received a confession from Robinson, and told detectives that he had “gotten more political in recent years,” and other contents of the affidavit of probable cause. Cox concluded the conference by saying, “There is one person responsible for what happened here, and that person is now in custody.” (Over the days that followed, Cox would become a ubiquitous presence on cable news, relaying both updates on the criminal investigation and general social commentary on what it said about the dangers of social media, while explaining on *Meet the Press* that “the White House” had specifically asked him to flood the media zone “because they're worried about the escalation that's happening out there.”)

Five days into the wall-to-wall assassination coverage, Patel appeared on Fox News to discuss what the network billed as “‘SHOCKING’ evidence” against Robinson, including “a note that Robinson is alleged to have written before the crime and later allegedly destroyed,” along with “DNA hits” from a towel that was wrapped around a discarded antique bolt-action rifle investigators found in a bush near the crime scene and a screwdriver **supposedly recovered “near”** the bush, but which was later said to have been found on the **rooftop**, where prosecutors say Robinson shot Kirk.

That same day, then-Attorney General Pam Bondi appeared on the network to commend the governor for seeking “the death penalty, which is very real in Utah, and they still have the firing squad” to “ensure that this horrible human being faces the maximum extent of the law.” Then, the FBI's then-deputy director Dan Bongino appeared on former Fox personality

Megyn Kelly's podcast to discuss the "strong forensic DNA hit" authorities had supposedly gotten matching the towel to Robinson, the "relationship here that may have been beyond platonic" between Robinson and his trans roommate Lance Twiggs, and the alleged facts that Robinson was "on suicide watch" and "not cooperating" with the investigation. The following day, Gray, the Utah County prosecutor, held a press conference to announce that the rifle's trigger and three unfired cartridges had been found to contain "DNA consistent with Robinson," and claim that in conversations with his parents Robinson had "implied that he was the shooter and stated that he couldn't go to jail and just wanted to end it. When asked why he did it, Robinson explained there is too much evil and the guy, referring to Charlie Kirk, spreads too much hate."

Directly thereafter, Sheriff Smith and his deputy appeared on NewsNation to discuss what a reporter wondered wasn't "an open-and-shut case." Smith replied: "Well, you would, we would hope so. The investigation continues, we're not going to look at it as open-and-shut. But you're right, I agree with you a hundred percent. The evidence is piling up and is becoming overwhelming."

But much of the purported overwhelming evidence Smith and countless other public officials had cited to bolster their certainty that they'd "gotten" Kirk's assassin—the screwdriver and the Discord confession, for example—did not even appear in the September 16 charging documents, leading some observers to wonder if authorities had worried it might be ruled inadmissible. The "DNA hits," meanwhile, also appear to have been potentially overblown: In a rare public courtroom appearance in February, Nester **asserted** that "DNA evidence that was seized from the scene consisted of a mixture of at least five different individuals." And in another motion the defense filed in late March, the public also learned for the first time that an official ATF analysis attempting to match bullet fragments recovered from Kirk's neck to the bullets Robinson allegedly engraved with esoteric memes was "inconclusive."

The search warrant unsealed last week references both the Discord confession and a handwritten confession that the transgender roommate, who was questioned by an FBI agent on September 11, told the FBI Robinson had left underneath his keyboard and instructed him to read in a text he had purportedly programmed to auto-send at an unspecified time following the murder. The roommate, who called themselves "Luna," had burned the note and thrown it in the trash, but apparently not before snapping a photo of it on their phone, which like the text messages is merely transcribed, and not pictured, in the warrant:

“Luna, If you are reading this per my text, then I am so sorry. I left the house this morning on a mission, and set an auto text ... I had the opportunity to take out Charlie Kirk, and I took it. I don't know if I will/have succeeded, but I had hoped to make it home to you ... I wish I could have stayed for you and lived our lives together. I lack the words to express how much I love you, and how very much you mean to me. Please try and find joy in this life. I love you, always, -Tyler”



Vice President JD Vance speaking at Turning Point USA's AmericaFest 2025 conference in Phoenix, Arizona, December 21, 2025. Credit: Alexandra Buxbaum/Sipa USA via AP Images

By the end of November, Utahns were feeling decidedly uneasy about the media circus that had enveloped their state, according to a poll conducted by the news station KUTV as to whether viewers felt media coverage had irrevocably tainted Robinson's right to a fair trial. Just 37 percent said they thought Robinson's jury would treat him fairly; 42 percent said it would be "hard to avoid bias" after the barrage of public comments made about the case by local officials, and 11 percent felt it might be possible to find an impartial jury if the case were transferred into another jurisdiction—raising the question of where in America one might find 12 people who had been spared the content tornado. A week before the poll,

Reuters **revealed** that roughly 600 Americans had been fired or somehow formally reprimanded by their employers for making comments as anodyne as “Thoughts and prayers” in the aftermath of Kirk’s murder. But unemployment offered no sanctuary from punishment for Kirk-related wrongdoing: A retired Tennessee cop spent **37 days in jail** for posting a few liberal memes referencing his death in a Facebook group.

In his speech at the massive Turning Point USA AmericaFest confab in December, JD Vance described Robinson’s trajectory from all-American child genius computer nerd who was the pride of his large Mormon family to what commentator (and attorney) Kelly called an “evil, evil being” because “I don’t want to use the word ‘person.’” Vance described Robinson as the embodiment of a universal “nightmare scenario” keeping “American families” across the country up at night:

Think about it. He has everything that the far left want from our young men. He rejected the conservatism and the spirituality, the values of a small-town family. He moved into a small apartment, he became addicted to porn, he became addicted to hate, and he ended up sleeping with somebody who doesn’t know whether they’re a man or a woman. That is the nightmare scenario, but that is the scenario that the left has actively advertised they want for American families, and the young men in the audience in particular. That is exactly why we have to fight them.

Once AmFest and the preparations for the organization’s alternative Super Bowl halftime show were over in late January, TPUSA began its own **substantial “purge”** to rid the ranks of staffers whom leadership suspected of leaking information to journalists and influencers who had questioned Robinson’s guilt, suggested Kirk had been targeted by a broader conspiracy, or criticized party-line Fox News-ified positioning of the organization under its new leader, Charlie’s widow Erika Kirk. “I just have a gut feeling that I was terminated from Turning Point because I am questioning the narrative of what happened to my role model and CEO, Charlie Kirk, on the day of his assassination,” one of the purged was quoted as saying in a Bulwark **story** praising the organization for cutting ties with employees who showed signs of entertaining “conspiracy theories” about its founder’s death; the employee emphatically denied sharing that viewpoint or leaking any information about the organization before her termination.

Robinson’s defense team has gone to great lengths to distance itself from what the brief refers to as “outlandish conspiracy theories,” even blaming online conspiracy influencers for biasing respondents of the poll into doubting their client could get an unbiased trial despite

the unimpeachable neutrality of Judge Tony Graf, whom the brief commends for having “stressed from the outset that it is committed to assuring” him one. “The only explanation for such numbers is that a substantial number of the public is getting ‘educated’ (i.e., biased) from other sources,” the brief concludes somewhat hilariously, given that it has just devoted 185 pages to detailing a vast conspiracy of national, state, and municipal public figures and media outlets from TMZ to the One America News Network to convince the public of their client’s guilt despite evidence it describes (accurately, I would argue) as “several layers of hearsay that have never been subject to any adversary testing.”

To be fair, there may be mountains of evidence no one yet knows about; the defense also said in a brief a few days before the one in question that the prosecution had only just delivered the vast majority of the discovery material it had provided in mid-March, six months after it had been requested. It remains a mystery to the public what became of the distinctive American flag T-shirt worn in the grainy surveillance photographs of the person in the stairwell purported to be Robinson, how he got the rifle off the roof, and why authorities are so sure Kirk’s fatal wound was created by a .30-06 bullet despite even TPUSA spokesman Andrew Kolvet’s **famous concession** that the ammunition “would have taken a moose or two down, an elk, etc.” but left nary an exit wound in Kirk’s neck, thanks only to his unusual bone density. (In another March **motion**, the defense noted that prosecutors had informed them the FBI was apparently still in the process of attempting to supplement the inconclusive ATF ballistics report with a “bullet lead analysis,” a form of forensic analysis the FBI **officially discontinued** back in 2005 following an exhaustive 14-month National Academy of Science review of its scientific foundation.)

But for most outside the “conspiracist” loony bin endlessly mocked by the likes of the Bulwark and even Ken Klippenstein—who recently **maligned** as a “crackhead view” theories of the case implicating a certain **deep-pocketed** Middle Eastern lobby with whom Kirk was **bitterly feuding** in the **weeks before** his death—the notion that Tyler Robinson was no more a murderous mastermind than anyone intuitively senses him to be is not a hill worth hiking, much less dying on. Like the media-circus performers who flocked to the trial of Sam Sheppard at the very peak of McCarthyism, they have likely been traumatized more profoundly than they realize by witch hunts that are far more effective than anyone can bear to accept. Like JD Vance, they see Tyler Robinson less as a human being and more as a nightmare.

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